



Marine Circular Nr. 01/ 2025, 18/02/2025

Subject: “G-B I.S.R. Mortgage Registration Policy and Procedures”

Ref.: G-B I.S.R. Code of Operation.

To: Shipowners/Operators, Legal Representatives of G-B I.S.R. flagged Vessels, Deputy Registrars Authorized Offices, Recognized Organizations (ROs), relevant stakeholders

Summary: The current Marine Circular outlines the policy and procedural requirements for mortgage registration under the International Ships Registry of Guinea-Bissau (G-B I.S.R.). It details the required documents, including a notarized Mortgage Deed, notarized Power of Attorney confirming the signatory's legal authority, and the preferable submission of the Loan Agreement. It also mandates advance submission of the mortgage file to the GB ISR Registration Department for pre-clearance to ensure compliance. Mortgagee consent is mandatory for ownership changes, vessel name changes, deregistration, or bareboat charter registration. The notice further covers priority ranking, amendments, enforcement, and the validity of mortgages even after vessel deregistration.

1. Purpose

1.1. This Marine Circular outlines the policy and procedural requirements for the registration, transfer, amendment, discharge, and enforcement of ship mortgages under the International Ships Registry of Guinea-Bissau (GB ISR).

2. Legal Basis

2.1. Mortgage registration is governed by Part 3 of the Guinea-Bissau International Ships Registry (G-B I.S.R.) Code of Operation on Mortgage Registration, which sets out the rights and obligations of vessel owners, mortgagees, and other interested parties and the respective G-B I.S.R. Procedures for Mortgage Registration.

3. Mortgage Registration Procedure

3.1. A mortgage can be registered by the General Ships Registrar or Deputy General Ships Registrar in accordance with the GB ISR Code of Operation. A mortgage previously registered under another flag may be transferred to the GB ISR, subject to approval and compliance with the following requirements:

3.2. Documents Required for Mortgage Registration. The following original, notarized documents must be submitted:

Page 1 of 4



G-B INTERNATIONAL

INTERNATIONAL SHIPS REGISTRY OF GUINEA-BISSAU

- .1 Application for Mortgage Registration signed by the mortgagor or an authorized representative.
 - .2 Mortgage Deed (Deed of Covenants) specifying:
 - a. Date and amount of the mortgage, interest rate, discharge amount, and maturity date.
 - b. Signatures of both parties, duly notarized.
 - .3 Power of Attorney (PoA) from the mortgagor to the signatory executing the Mortgage Deed.
 - .4 Power of Attorney (PoA) from the mortgagee to the signatory executing the Mortgage Deed.
- 3.3.** The PoA must be notarized and explicitly confirm the legal authority of the signatory to act on behalf of the mortgagor and mortgagee.
- 3.4.** It is strongly recommended that the Loan Agreement supporting the mortgage also be submitted. While not mandatory, it provides additional verification of the financial arrangement underlying the mortgage and ensures consistency with the registered mortgage terms.
- 3.5.** The mortgage can be provisionally registered if the vessel is under provisional registration, subject to approval by the General Ships Registrar or Deputy General Ships Registrar.
- 3.6.** Mortgagee's Consent for Changes to Registration
- The written consent of the mortgagee is mandatory for:
- .1 Change of vessel ownership
 - .2 Change of vessel name
 - .3 Deletion of vessel from GB ISR registry
 - .3 Bareboat charter registration to another flag
- 3.7.** The registry shall not process any such changes without the prior written consent of the mortgagee.
- 3.8** Verification and Pre-Clearance of Mortgage Documentation. All documentation submitted for mortgage registration must be complete, accurate, and duly verified to ensure compliance with GB ISR requirements. To facilitate an efficient and seamless registration process, the mortgage file, including all supporting documents, must be submitted electronically in advance to the GB ISR Registration Department for pre-clearance. This pre-clearance process allows for legal verification and ensures that any deficiencies, inconsistencies, or missing information are identified and resolved prior to formal registration. The registry reserves the right to request additional documentation if deemed necessary.

4. Priority of Mortgages

- 4.1.** Mortgages shall be registered in the order in which they are submitted to the registry. The priority ranking of mortgages is determined based on the date and time of registration. Mortgagees may agree to vary the ranking of mortgages, which shall be noted in the registry.



5. Mortgage Amendments

5.1. A registered mortgage may be amended, provided that:

- .1 The amendment is duly notarized and submitted to the registry.
- .2 The mortgagee consents in writing to the amendment.
- .3 If other mortgages exist on the vessel, all mortgagees must consent before the amendment is noted.

5.2. The amendment shall retain the same priority as the original mortgage.

6. Discharge of Mortgage

6.1. A mortgage may only be discharged upon submission of the following:

- .1 Original notarized Letter of Discharge of Mortgage, signed by the mortgagee.
- .2 Any other supporting documents as required by the General Ships Registrar or Deputy General Ships Registrar.

7. Transfer of Registered Mortgage

7.1. A registered mortgage may be transferred upon submission of a Transfer of Mortgage Instrument, duly notarized. The General Ships Registrar shall record the transfer and update the register accordingly.

8. Enforcement of Mortgages

A registered mortgage may be enforced under G-B I.S.R. procedures, including:

- .1 Judicial Sale: A court may order the sale of a mortgaged vessel to satisfy outstanding debts.
- .2 Private Sale: A mortgagee may sell the vessel under contractual rights if an event of default occurs.
- .3 International Enforcement: Mortgages registered with GB ISR may be enforced in foreign jurisdictions under applicable maritime laws.

9. Mortgages on Vessels Transferring to GB ISR

9.1. For vessels transferring from another flag, the following shall apply:

- .1 The mortgagee must provide notarized written consent to transfer the vessel into GB ISR.
- .2 Existing mortgages shall be registered with the same priority ranking as in the previous registry.

Page 3 of 4



10. Validity of Mortgage After Termination of Registration

10.1. A registered mortgage remains valid even if the vessel's registration is terminated. The GB ISR shall provide 60 days' written notice to mortgagees before canceling a vessel's registration for disciplinary reasons.

11. Miscellaneous Provisions

11.1. The mortgagee is not considered the vessel owner solely due to mortgage registration. Mortgage registration, amendments, and discharges shall be subject to fees as prescribed by the GB ISR. The registry reserves the right to request additional documentation as deemed necessary.

12. Contact Information

12.1. For further inquiries regarding mortgage registration, please contact: Guinea-Bissau International Ships Registry (G-B I.S.R. Registration Department (reg@gbi-lb.org), Tel: +30 210 4537950 & Legal Department (gbi@gbisl.com).

13. Effective Date

13.1. This Marine Circular is effective immediately as of the date of issuance.

For the Guinea-Bissau International Ships Registry

Authorized Signatory:

Office of the General Ships Registrar

